



EMPLOYMENT CONTRACT

24th January 2024

Kristian David Bansil
0732 Pulung Santol
Porac
Pampanga

Dear Kristian,

We are pleased to confirm your employment with us under the following terms and conditions:

POSITION TITLE	:	Web Developer / IT and Admin Support
IMMEDIATE SUPERIOR	:	Maintenance Technique AU team
BASIC SALARY	:	PHP 75,000.00 per month
ALLOWANCE	:	PHP 5,000.00 per month
APPOINTMENT	:	Probationary Employee

1. Employment Period – Your employment commences on **12 February 2024** provided that the following requirements have been accomplished and submitted prior to the effective date of regularization:

Unless otherwise directed, the ordinary working hours shall be between **7 a.m. to 7 p.m.**, with a one-hour meal break. The ordinary workdays shall be scheduled across Monday to Sunday, except as otherwise instructed.

2. Compensation – Your gross compensation is **Php 80,000.00** per month. After deductions, the net income shall be payable.
3. Duties and Responsibilities – You hereby consent to be assigned primarily the duties and responsibilities specifically described in Annex "A" hereof, without being limited thereto. The Company reserves the right to appoint you to other tasks and responsibilities.
4. Taxes, Government Contributions, Authority to Deduct – You hereby agree to deductions authorized by law, including but not limited to, withholding tax, SSS, Philhealth, Pag-IBIG, debts owing to Company, and all other analogous deductions.
5. Monetary Benefits and Leaves – Unless otherwise provided in the company policies, statutory monetary benefits and leaves will be provided to you whenever due and proper. The Company will provide you with a Health Maintenance Organization or a health insurance provider ("HMO") after regularisation.
6. Violations and Disciplinary Actions – Except as otherwise modified in the company policies, labor law grounds for disciplinary action, including termination, is hereby adopted, and incorporated by reference.
7. Voluntary Termination - In the event that you voluntarily decide to terminate your employment with the Company, you shall serve a 30-day written notice prior to the official date of resignation to allow



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for a smooth turnover of all responsibilities and documents, unless expressly approved by the Company.

8. **Effect of Termination** - Upon termination of your employment, you shall promptly turn over to your superior or the designated company representative all documents, records and any other property which relate to the business activities of the Company.
9. **Non-Disclosure** - You shall not divulge any proprietary or confidential information or documents of the Company, matters relating to said business of the Company or matters relating to any customer which may become known to you by reason of your employment or otherwise, save in so far as may be necessary in the interests of said business.

To add, during your employment you may become aware of information relating to the business - Maintenance Technique Pty Ltd, including but not limited to client lists, trade secrets, client details and pricing structures. Confidential information remains the sole property of Maintenance Technique Pty Ltd. You shall not, either during or after your employment, without the prior consent of the business - Maintenance Technique Pty Ltd directly or indirectly divulge to any person or use confidential information for your own or other's benefit.

10. **Non-Compete** - You shall not be employed in any competitor company in the same line of business as that of the Company and operating within the Clark Special Economic or Neepo Peza Zone for a period of Five (5) Years from the date of your separation from the company.
11. **Liquidated Damages** – In case of non-compliance with or violation of any of the above provisions, you shall pay the Company liquidated damages equivalent to two (2) months gross compensation.
12. **Company Policies** – You hereby agree and consent to the terms and conditions stated in company policies, written or unwritten, as well as all its Rules and Regulations, which are incorporated herein by reference and made an integral part hereof.
13. **Entirety of Agreement** – The parties hereby agree that this Agreement and those which are incorporated herein by reference constitute the entire employment contract and supersedes all prior arrangements, whether verbal or written.
14. Your signature affixed below indicates your acceptance of the foregoing terms and attests to the veracity of all information herein incorporated and agreed on; and that you hereby undertake that upon signing of this contract, you shall hold the Company free from any liability arising or related your previous employment.

For and in consideration of the above terms and conditions RSS Incorporated through its designated representative and the employee hereby affix their signatures to signify mutual agreement.

With your acceptance, we welcome you to the Company and hope you will find your work both pleasant and rewarding as we look forward to a mutually beneficial working relationship.



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Annexure A

Annexure A

Key Responsibilities

You will be responsible for, but not limited to:

IT Support

- Website maintenance and improvement
- Web design and function changes/improvements
- Intranet Document Controller.
- Manage the document control process via the Maintenance Technique Intranet
- Maintain Intranet document folders.
- Maintain company IT equipment register.
- Maintain Intranet user logons and Team Contacts list.
- Control and audit master data in simPRO operating system
- Provide IT support for Microsoft based products (including Outlook)
- You will also be required to perform such other duties and responsibilities required by your client from time to time.

Admin Support

- Process Job invoicing – New parts sales only
- Process general creditors invoices
- Catalogue download reporting
- Updating of parts catalogues - SOP
- Linking new parts items in interactive catalogue pages
- Maintain technical documents (add and update when changes are made)
- Setting up of new customers for the online quoting portal - SOP
- Audit document format and titles (as per procedure) - SOP
- Corporate Traveller invoicing management.
- Build and maintain company reports
- Co-ordinate company travel as required.
- You will also be required to perform such other duties and responsibilities required by your client from time to time.

Key Performance Indicators

- *To be discussed and to follow.*

Annex B - Benefits

A. Holidays

1. The following are the regular holidays in the Philippines:

- a. New Year's Day
- b. Maundy Thursday
- c. Good Friday



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- d. Araw ng Kagitingan
- e. Labor Day
- f. Independence Day
- g. National Hero's Day
- h. Eidl Fitr
- i. Eidl Adha
- j. Bonifacio Day
- k. Christmas Day
- l. Rizal Day

An employee is entitled to 100% of his/her daily wage even if he/she did not report to work on a regular holiday, provided he/she is present, or is on leave of absence with pay on the workday immediately preceding the holiday.

Work performed on that day merits at least twice (200%) of the daily wage of the employee. Overtime work performed on such days entitles the employee to an additional 30% of the hourly rate on said day. It shall be computed in accordance with the following:

Daily rate/8 x 200% x 130% x number of hours OT work = Pay for the day

2. Unless otherwise modified by law, order, or proclamation, the following are the special days in the Philippines:

- a. Ninoy Aquino Day – Monday nearest August 21
- b. All Saints Day – November 1
- c. Feast of Immaculate Conception of Mary – December 8
- d. Last Day of the Year – December 31

The "no work, no pay" principle applies during special days. However, work performed on special days merits additional compensation of at least thirty percent (30%) of the basic wage.

13th Month Pay.

Paid before the 24th of December and based upon your basic pay as mandated by Presidential decree 851.

B. Premium Pay

1. Work performed on rest days

There shall be an additional 30% of the daily wage on work performed on rest days.

2. Work performed on rest day which is also a special day

There shall be an additional 50% of the daily wage on work performed on a special day.



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C. Overtime pay

1. For work in excess of eight (8) hours performed on ordinary working day

There shall be an additional 25% of the hourly rate for work performed in excess of eight (8) hours.

2. For work in excess of eight (8) hours performed on a schedule rest day or a special day

There shall be an additional 30% of the hourly rate for work performed in excess of eight (8) hours.

3. For work in excess of eight (8) hours performed on a special day which falls on a rest day

There shall be an additional 30% of the hourly rate for work performed in excess of eight (8) hours.

D. Night Shift Differential

This refers to additional compensation of ten percent (10%) of an employee's regular wage for each hour of work performed between 10 pm and 6 am.

E. Leaves

All employees are given vacation leaves of fifteen (15) days each year (or 1.25) vacation leave credits every month) and sick leave of five (5) days each year (or 0.42) sick leave credits every month).

An employee can avail only of accumulated vacation/sick leave credits at the time of application/absence. All vacation/sick leave credits are cumulative but not convertible to cash.

Employees on probationary status commence to earn leave credits from the date of employment but can only avail of them beginning the month following their probationary period.

Unused leave credit for employees who are terminated for cause shall be forfeited.

Sick Leave credits are forfeited upon separation from the company.

Vacation leave request forms must be completed at least 4 weeks in advance.

Sick leave forms are completed when you return to work. Medical certificates must be provided if you are scheduled to work on a public holiday, weekend, or rest day. If your period of absence is more than two days or if absent before or after the weekend, before or after a public holiday, before or after filed leave.

Emergency Leave – One day per calendar year. Non-cumulative and non-convertible to cash. Medical documentation must be provided.